

As alleged, Patterson's actions show intent to cause injury with a willful and conscious disregard for the safety of Plaintiffs. The allegations are similar to those seen in *Thomas v. Doorley* (1959) 175 Cal.App.2d 545, where the court upheld a jury award of punitive damages in favor of the plaintiff who stated he was the victim of an "unprovoked, unwarranted and malicious assault." (*Thomas, supra*, 175 Cal.App.2d at 548.) Despite conflicting testimony regarding self-defense, the court held that, "It is beyond controversy that the defendants were guilty of oppression and malice and that the court was justified in awarding punitive damages as provided by section 3294 of the Civil Code." (*Id.* at 494.)

Even when a complaint does not have a specific request for punitive damages, it has been found that allegations that a defendant assaulted and beat a plaintiff, and the defendant struck the plaintiff in and about the face fracturing plaintiff's jaw and causing injury to the plaintiff's left eye, and numerous contusions and abrasions about the plaintiff's face and head, inferentially pleaded malice so as to warrant an instruction on exemplary damage. (See generally, *Voy v. Shelley* (1960) 177 Cal.App.2d 132.)

Here, the complaint sufficiently describes Patterson's assault and battery on Andrew such that a request for punitive damages survives the pleadings challenge. (Complaint, ¶ 1, p. 2:13-20.)

Motion to Strike Plaintiffs' Claim for Punitive Damages DENIED.

Case Management Conference confirmed for 7.31.26

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO VACATE; TO DISQUALIFY; VOID; AND FOR TERMINATING SANCTIONS by JENNIE LYNN GONZALEZ

Tentative Ruling: No tentative ruling. Case was transferred to Los Angeles County Superior Court for all purposes.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2602951	NGHIEM VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL ARBITRATION BY GENESIS MOTOR AMERICA, LLC

Tentative Ruling: CCP §1281.2, governing orders to arbitrate controversies, provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner;

or

(b) Grounds exist for rescission of the agreement. (CCP §1281.2(a)-(b).)

A trial court is required to grant a motion to compel arbitration “if it determines that an agreement to arbitrate the controversy exists.” (CCP § 1281.2.) However, there is “no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

Not cited by either party but is instructive is *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164 (“Mitri”). There, the arbitration agreement in the employee handbook required employees, as a condition of employment, to sign an arbitration agreement and that each will be provided a copy of their signed arbitration agreement. However, no signed arbitration agreement was produced and the Court of Appeal held the employer failed to establish the existence of an agreement to arbitrate, rejecting the employer’s argument that the handbook’s reference to a separate arbitration agreement constituted an arbitration agreement between employer and employee, finding the language of the handbook itself suggested the handbook did not create an agreement between the party. (Id. at 1170-1171.)

Here, Defendant GMA failed to establish mutual assent. Like Mitri, GMA here has not produced evidence of any signed arbitration agreement to evidence mutual assent. “One of the essential elements of an enforceable contract is mutual consent.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.) For consent to be mutual, the parties must all agree on the same thing in the same sense. (Ibid.; Civ. Code, §§ 1580, 1636.) There is no evidence Plaintiffs were presented the relevant pages of the Handbook where the arbitration provision is specifically located. There is no evidence that Plaintiffs signed an acknowledgment of receipt of the Handbook. In fact, there is no evidence the Handbook was even presented to Plaintiffs prior to, or after, purchase. Instead, defense counsel simply attaches the Warranty Handbook as an exhibit to his declaration. (Ameripour Decl., Exh. 2.) There is no declaration by a GMA representative stating that the Handbook was, in fact, provided to Plaintiffs or that the Handbook is provided to all Hyundai purchasers, or that the Warranty Handbook is even applicable to Plaintiffs’ vehicle.

Equitable Estoppel:

Defendant GMA’s argument under the doctrine of equitable estoppel also fails. GMA argues that Plaintiff is equitably estopped from disclaiming the arbitration clause because “a litigant may not assert claims based on a contract while simultaneously arguing that an arbitration clause in that contract is ineffective,” citing to *Stiner v. Brookdale Senior Living, Inc.* (9th Cir. 2020) 810 F. App’x 531, 534. However, *Stiner* is inapplicable because it involved an arbitration clause contained in a mutually agreed upon, fully executed assisted living facility residency agreement. In fact, all of the cases cited by GMA involve signed agreements. The difference here is that GMA failed to show the Handbook is an enforceable contract.

Warranties vs. Contracts:

It should be noted that warranties are different from contracts. Warranties, unlike contracts, do not impose binding obligations on the buyer. (See *Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213, 1228-1229.) "A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell." (*Keith v. Buchanan* (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (Ibid.) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Civ. Code, §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, the written warranties do not constitute a contract between the manufacturer and the buyer. Rather, it is the retail installment sales contract that evidences the transaction.

Defendant's Request for Judicial Notice GRANTED.

Plaintiff's Evidentiary Objection #1 SUSTAINED.

Motion to Compel Binding Arbitration DENIED.

Case Management Conference confirmed for 10.21.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604533	KALMANEK VS CENTURY 21 REAL ESTATE LLC, A DELAWARE LIMITED LIABILITY	HEARING ON PETITION TO PERPETUATE TESTIMONY AND COMPLE PRE-FILING DISCOVERY

Tentative Ruling: No tentative ruling. Case was dismissed on 7.17.26.